Standard Operating Procedure (SOP)

Country Specific Requirements United States CH

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Applicability

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Distribution Sheet for Quality Regulations

Division/Business Unit ☐ PH ☒ CH

GBS Location

☐ Global Business Services Barcelona

☒ Global Business Services Costa Rica/Brazil

☐ Global Business Services Manila

☐ Global Business Services Gdansk

☐ Global Business Services India

☐ Global Business Services Dalian

☐ Global Business Services Germany

Region/ Country

☐ Global
☒ Specific Country: United States

Relevance for R&D QMS

☐ Affected
☐ Interface
☒ N/A

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Document Author(s):	Warner Villalobos Benavides (GFFAE)
Document Approver(s):	CQH: Dana O' Donnell (MJYCD) PTC Team Lead/SME: Roberto Chaves Aguilar (EQVIE)
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Table of contents

1 Scope and Framework 5
1.1 Scope 5
1.2 Framework 5
2 Abbreviations 5
3 Purpose & Set-Up 5
3.1 Purpose 5
3.2 General guidance 6
3.3 Roles and responsibilities 6
4 Specific requirements regarding PTC handling 8
4.1 Country Specific Requirements listed by different topics 8
4.2 Contact list 8
4.3 Escalation Rules 8
4.4 Pharmacovigilance cases 9
4.5 Product Samples 9
4.6 Statement letter 10
4.7 RQU Contact list 10
4.8 List of Local Opportunities Products 11
4.9 Data Privacy Requirements 11
4.10 Gathering additional information (including obtaining translation) 11
4.11 Reimbursement and Replacement 11
4.12 Exceptions and special cases 11
4.13 Others 12
5 Internal References 15
6 External References 15
7 Annex 1 18

1 Scope and Framework

1.1 Scope

Bayer Country Quality Units (CQUs) are accountable for a GMP compliant Product Technical Complaint Management within their respective countries. Within this responsibility they are supported by the respective Global Business Services in process steps like management of the complaint entry, initial error code categorization, timely escalation of cases involving local authorities and potential falsifications or counterfeits, assignment of investigations to the Responsible Quality Unit (RQU), and final verification, including complaint case closure.

This SOP defines clear guidance to the Global Business Service regarding all country specific requirements.

1.2 Framework

This SOP is based on principles and requirements outlined in SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in GBS”.

2 Abbreviations

AE	Adverse Event
CR	Consumer Relations
CMO	Contract Manufacturing Organization
CQH	Country Quality Head
CQU	Country Quality Unit
FDA	Food and Drug Administration
GBS	Global Business Service
HCP	Health Care Professional
OTC products	Over-the-counter products
PTC	Product Technical Complaint
PV	Pharmacovigilance
RQU	Responsible Quality Unit

3 Purpose & Set-Up

3.1 Purpose

Country Specific Requirements for United States of America are described in this SOP, regarding e.g. data privacy, sample request process, contacts and escalation rules. Note that this SOP only applies to Consumer Health products. A separate Country Specific SOP is available for Pharma and Biotech products.

During the processing of all PTCs by Bayer owned Global Business Services all country specific requirements are considered and followed, in addition to the general complaint handling process described in the SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in GBS”.

3.2 General guidance

The employees of Global Business Services are following this SOP during complaint processing in the complaint database on behalf of the US Country Quality Unit.

3.3 Roles and responsibilities

GBS team	- Enters PTCs, Suspected Counterfeit Incidents and Usability Issues according to defined timelines in a timely manner, entering them into the global complaint database in English language - Organizes missing information and asks CQU for any support contacting the complainant if not possible/allowed by GBS (e.g. data privacy, non-hosted language) - Performs initial error categorization of complaints after receipt - Informs the CQU about all PTCs where local authorities are involved, about all potential counterfeits and any other cases described in this SOP - Checks if a complaint sample or photograph is available and notifies CR to initiate follow-up/retrieval activities, if required - Checks if a complaint sample or photograph is available and notifies CR to initiate follow-up/retrieval activities, if required - Updates the complaint database regarding sample status - Forwards the case to the organization responsible for the investigation for further processing - Reviews the case for completeness and comprehensiveness and closes the complaint case in the complaint database - GBS is responsible for performing the KPI evaluation monthly and sharing the results with CQH/CQU.
Consumer Relations	- Supports the GBS in obtaining missing complaint information and complaint sample photographs when required - Coordinates the complaint sample return, if requested - Sends out the Response Letters to the complainants
Country Quality Head (CQH) / Country Quality Unit (CQU)	- Supports GBS to interpret case information, if required. - Ensures that all changes within the country law and regulation are directly notified to the GBS and that the Country Specific SOP is updated - Ensures that current list of distributed products is updated and contains all products - Reviews Escalations assigned to CQU

Response Quality Unit (RQU)	- Receives the complaint cases for products produced at Bayer Facilities under their oversight - Assesses initial PTC report and assigns the initial complaint Risk Category - Evaluate sample if required. - When escalation is required, ensures the complaint information is appropriately forwarded to relevant functions, (i.e. CQH, CQU, PQSC GKs). - Responsible for performance of the investigation into the quality issue reported in the complaint - Documents the results of the investigation into the complaint database - Defines, Implements and tracks to completion any corrective or preventative actions (CAPAs) resulting from the investigation - Issues the final complaint assessment and classification
Consumer Health Divisional Quality	- Receives the complaint cases for products produced at 3rd party CMOs - Assesses initial PTC report and assigns the initial complaint Risk Category - When escalation is required, ensures the complaint information is appropriately forwarded to relevant functions, (i.e. CQH, CQU, PQSC GKs). - Initiates and coordinates complaint investigations, including assignment of CAPAs, with local CMOs. - Documents the results of the investigation and any relevant CAPAs into the complaint database.
Quality International Global Business Partner	- Is responsible oversight of GBS - Is responsible for regular KPI evaluation of complaint activities at the GBS.

4 Specific requirements regarding PTC handling

4.1 Country Specific Requirements listed by different topics

Description	Assigned Roles & Document Reference

4.1.1 General Information

Bayer US LLC offices are located at 36 Columbia Road, Morristown, NJ 07962.

Bayer Business Services Costa Rica, SRL (GBS) offices are located at America Free Zone, Heredia, Costa Rica.

4.2 Contact list

Quality International Global Business Partner – Gloria Gaviria, *gloria.gaviria@bayer.com*

CQU – cc*product.complaint@bayer.com*

PV-PQS – *pv-pqs@bayer.com*

Consumer Relations – CC-CONSRELDEPT@bayer.com

Drug Safety – drugsafety.gpv.us@bayer.com

Remark:
Current name and e-mail address of CQH and CQH deputy are found on the QINT SharePoint:

https://bayergroup.sharepoint.com/sites/oneqint/SitePages/Who%20are%20we.aspx#country-quality-list

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4.3 Escalation Rules

GBS

The CQH and the CQH deputy should be notified via notification/immediate action in the complaint database about any complaint case referring to at least one of the following situations:

- Suspected falsification and Counterfeit incidents
- Any cases involving Health Authorities (including threats to inform the FDA)
- Litigation cases
- Label misprint errors
- Foreign particles if confirmed via photo at the time of case entry
- Cases considered to be potentially life-threatening – serious risk to health
- Confirmed cases with final risk category High or Medium

The escalation should result in creation of an immediate action task in the complaint database with the following information:

- Title: Reason for escalation
- Current due date: Same as the current due date of the complaint
- If case is received by email, attach the email containing the case information

Remark: The current names and e-mail addresses of the CQH and the CQH deputy are found on the QINT SharePoint:
https://bayergroup.sharepoint.com/sites/oneqint/SitePages/Who%20are%20we.aspx#country-quality-list

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Description	Assigned Roles & Document Reference
4.4 Pharmacovigilance cases All Adverse Events reported by CR should be entered into Emplifi prior to processing by the GBS. If an Adverse Event is reported with a Product Technical Complaint, The CR will assign a TCINITIAL/TCINITIAL2 code which notifies the GBS to evaluate if the case needs to be entered as a PTC+AE or PTC alone in the complaint database. Since PV has visibility of those cases entered in Emplifi, PTC officer will only write the Emplifi number in the “Global Safety Database Number” field while entering the PTC+AE case. If the case comes via email, “Global Safety Database” is populated with the corresponding Argus number. If a case contains a potential AE and there is no evidence that Pharmacovigilance has been informed, a notification via email to PV: drugsafety.gpv.us@bayer.com must be sent at latest the next working date upon receipt. **Remark** AE/PTC cases received from Pharmacovigilance that do not require investigation, do not have to be entered into any complaint database. If a case is not entered into the complaint database, an e-mail should be sent to Pharmacovigilance with appropriate rationale.	GBS
4.5 Product Samples Unless there are product specific requirements, product samples are retrieved if they are needed for investigation and cannot be replaced by pictures. The RQU/CQU will issue a notification through the communication protocol to GBS. In response, GBS will initiate the retrieval process in Engage and create the immediate action to document it. The following best practices provide guidance to identify the initial error codes and the initial risk classification. • US03REGS-BP000103. Caplets, Tablets and Effervescents Technical Complaint Guidance Document. • US03REGS-BP000104. Capsules, Soft Gels and Liquid Gels Technical Complaint Guidance Document. • REGS-US03-BP-000105. Plasters and Patches Technical Complaint Guidance Document. • US03REGS-BP000109. Gummies and Dragees Technical Complaint Guidance Document. • US03REGS-BP000110. TENS Units Technical Complaint Guidance Document. • US03REGS-BP000111. Solutions, Suspensions and Shampoos Technical Complaint Guidance Document. • US03REGS-BP000112. Granulars and Powders Technical Complaint Guidance Document. • US03REGS-BP000113. Ointments, Balms, Cream, Lotions and Gels Technical Complaint Guidance Document. • US03REGS-BP000114. Aerosols and Pump Sprays (including Nasal Sprays) Technical Complaint Guidance Document. • US03REGS-BP-001282. Midol Heat Vibes Best Practice.	GBS/CQU

Description	Assigned Roles & Document Reference
Remark: High risk complaints must always be immediately retrieved when possible. Initial risk classification according to different error codes is also provided on the documents mentioned above, SSC-PTC-BP-001 can be also used for this purpose. GBS assigns initial risk classification for low risk complaints, which do not require investigation and are able to be closed locally.	
4.6 Statement letter	GBS/CQU
Response Letter before closing: Response letters to the customers and consumers are managed by CR GBS selects in complaint database “Yes” in Customer response required field in the following instances: Upon request by the complainant, unless the complainant is part of an ongoing legal case. Cases investigated for Alliance Partners. Suspected counterfeits reported by agencies such as U.S. Homeland Security or the FDA For counterfeit cases, when the Final Risk Classification has been documented by the investigation site to be either “High” or “Medium”. All cases received from Regulatory Agencies, except those received from the following FDA division: Medwatch / DQRS program. If a response letter is required, an immediate action will be initiated and assigned to the PTC officer. Upon completion of the assessment, the PTC officer will create a task in Emplifi that outlines the results of the investigation. The immediate action and the case in the complaint database will then be closed. **Remark:** Response letters to Alliance Partners, Government Agencies or Health Authorities are managed by CQU. GBS must create an immediate action task into the complaint database and assign it to the CQU, once the task is completed, GBS can close the case. Response letters for complaints initiated by “Amazon Corporate” are entirely managed by the CQU, without any notification from the GBS, thus select always “no” in Customer response required field.	
4.7 RQU Contact list	GBS
Three different tables are needed to perform complaint data entry into the complaint database, those are available on Share Point: *COMOP Q-Documents - Documents - GBS Costa Rica - All Documents*: - USA Finished Good List: Includes all available products in the country and relevant information needed to perform data entry into the complaint database (e.g. material number, manufacturing site). - USA Master Product List: Includes all available products in the country and the respective product type.	

Description	Assigned Roles & Document Reference
- Master List Complaint Responsibilities: Includes the respective responsible of complaint assessment according to each manufacturing site. **Remark:** Manufacturing sites and product registration can also be verified by using SYNAPS tool.	
4.8 List of Local Opportunities Products All Local Opportunities Products are registered in the RQU Contact lists (4.7).	
4.9 Data Privacy Requirements For all electronic information provided, GBS must follow and apply the 'User Guide for Redaction of Personal Data in Complaint Attachments' to ensure compliance with data privacy requirements. *Complaints - IQMS Complaint Management Trainings - All Documents*	
4.10 Gathering additional information (including obtaining translation) Contact the complainant to gather missing information (written or verbal) regarding the complaint is made by CR before the case is received by the GBS or upon request of GBS. PTC Officer assigns the tasks in Emplifi requesting the needed information, documenting the three attempts in the complaint database. **Remark:** Case follow-up and sample retrievals will not be required for legal cases, when the complainant requests no return calls, or if no contact information is available. If a complaint first came via phone communication (e.g. call center), this contact with consumer is considered to be the first attempt to gather information.	GBS CQU
4.11 Reimbursement and Replacement N.A	GBS
4.12 Exceptions and special cases Expired Products – All expired product cases will be entered as processable complaints into the complaint database. Investigations will be required for technical complaints with Initial Risk High and medium where the product was used by the patient or HCP and the expiration date has not been exceeded by more than one calendar year. No investigation is required for technical complaints with Initial Risk low where the product was used by the patient or HCP when the product has expired, or for Initial Risk High or Medium where the expiration date has exceeded more than one calendar year. **Information not requiring a complaint database entry**	GBS

Description	Assigned Roles & Document Reference

- When the underlying cause of the report is known to be a Usability / Preference (handling/customer satisfaction) Issue. This includes incorrect preparation or use based on product knowledge and past complaint investigation history.
  Exception: Usability Issues will be entered into the complaint database for all medical device and for the medical device constituent of combination products.
- Adverse event reports that are not directly associated with potential product quality issues unless the product is a medical device.
- Cases where a potential PTC was reported but was resolved with guidance/assistance during initial receipt will not be entered into the complaint database. For example, this includes cases where the consumer reported missing directions, but the directions were found with guidance from the contact center.

Cases coming from different sources

If a case is received from a source different from CR and the case cannot be related to an Emplifi file, email the case to CR asking for an Emplifi case entry. Exception: Cases where the complainant is not the final consumer are not entered in Emplifi.

Non-PTCs

If the case is received through Emplifi, it is not necessary to route non-PTCs back to the CQU. CR will process all issues including non-PTCs. GBS will review all issues in Emplifi and confirm non-PTCs by entering “N” in the “complaint database?” field.

If the case is received through SSF, CQU will be notified.

4.13 Others

Label error/misprint complaints

Label error/misprint complaints shall be prioritized upon receipt. For those complaints received with an alleged misprint or label error, GBS should verify in SYNAPS the label artwork, If the misprint is confirmed, GBS will communicate to the CQU who subsequently will notify Quality Management, and the complaint will be entered by the GBS. If the alleged label error is not confirmed, the case could be handled by the GBS as a non-PTC.

Duplicate search

Is not deemed necessary to do a duplicate search before entering complaints in the complaint database, and each Emplifi case can be addressed as a single case. However, if a duplicate is identified, CR should be notified.

Specific Vendor requirements

- Specific Vendor requirements should be followed if needed.
- Refer to REGS-US03-BP-001224 “Sending Investigation Results to Bion Pharmaceuticals” to follow specific requirements on Bion Pharmaceuticals products.

Child Resistant Cap monthly review

Description	Assigned Roles & Document Reference

CR Provide a monthly report listing all CRC complaints broken down by lot number. GBS Reviews monthly report and creates processable complaints for lots with greater than 3 CRC complaints.

Complaint database case processing

Initiated

- File snapshot of the Emplify case is not expected to be attached into the complaint database,

- Awareness Date: Refers to the date that GBS is aware of the case. When insufficient information has been received to initiate an investigation, and follow-up is necessary, the awareness date will be the date that the additional information was obtained. The case will include information, including dates, relating to all attempts made to follow-up.

- Initial Receipt Date: When a complaint has been received from an alliance partner, the date they received the complaint at their call center is entered into the initial receipt date field in the complaint database.

- Timeline can be set to Non-Standard Timeline for initial risk classification Medium and Low cases if responsible for investigation is a CMO, or if sample needs to be retrieved, even if the manufacturing site isn't a CMO.

- Emplifi Case number is entered in the CRM field in the complaint database if the case was received via Emplifi.

- If, at the receipt of the case or during any of the follow-up attempts, it becomes known that no sample is available, this shall be documented in the complaint database, and no further follow up attempts are required.

Closure

Detail instructions to proceed with the final closure can be found in the following Best Practice: IQMS-82002. "Consumer Health PTC Case Closure Guidance Document".

- Review of the CRM / Database complaint records is performed for completeness. If the case has records in both the CRM system and complaint database, the data in each system will be compared for consistency. If further clarification or additional information is needed, the Complaint database record is reassigned back to the responsible site and/or individual.

- When the complaint file is at final closure step it is reviewed and closed by a second individual who did not enter the case into the complaint database. The person responsible for closure evaluates the case for the following criteria:

  - Accuracy and completeness
  - Agreement with the assessment

Signing of the case provides final approval.

Description	Assigned Roles & Document Reference

- Medical Devices: When the results of an investigation indicate that a case requires a Medical Device Report that has not been previously identified, Technical Complaints shall do the following:

    - Pharmacovigilance will be notified so that the case can be entered into Argus. This is required for an MDR to be electronically submitted.
    - A follow up case will be created in the complaint database so that the case can be routed through PV PQS. This will allow the investigation and device codes to be transferred from the complaint database to Argus.

Follow up cases

An IQMS follow-up complaint is created when the contents of the case, including original investigation and original medical assessment if applicable, are accurate, but need to be expanded after additional information has been received, this includes but is not limited to, when:

- A sample was received
- A lot number was obtained
- An adverse event was reported

For detailed procedures on creating or superseding a complaint record, refer to IQMS User Guide: “Complaints-Initiator Role Tasks”.

Once the follow up complaint is created, new information is entered into the case by the initiator, who must clearly specify the nature of the new information within the “Communication Protocol” section to guide the assigned investigator to it. The follow up complaint must also be linked to the original case in the “Related Workflows” section. Once the follow-up complaint is created the status of the original complaints needs to be updated to “Superseded”, ensuing that only the most recent version of the complaint is included in the system metrics and reporting.

The awareness date should not be changed for these cases. The due date is defined as follows based on the complaint process type:

- Standard Complaint Process – The case must be initiated by GBS within 5 calendar days, followed by an investigation period of 20 days and an approval/closure period of 5 days.

- Non-Standard Complaint Process - The case must be initiated by GBS within 5 calendar days, followed by an investigation period of 50 days and an approval/closure period of 5 days.

    Note: The complaint must not exceed 90 calendar days from the awareness date.

IQMS Amendments

Description	Assigned Roles & Document Reference

A closed IQMS complaint can be re-opened if information contained in the file data, original investigation, or medical assessment has been found incorrect. This includes but is not limited to:

- Incorrect batch number
- Incorrect complaint reason
- Incorrect assessment results
- Request by RQU of PQS for corrections.

Complaints are amended only for corrections or to add pertinent information related to the complaint after its closure. Reopening must be requested to and approved by QA. In IQMS, *Complaints - IQMS Complaint Management Trainings - All Documents*

Naming files

Technical Complaints Electronic File Guideline, IQMS-94417 REGS-US03-BP-001219, provides accepted file formats and file naming conventions.

5 Internal References

- SSC-PTC-SOP-001 “Manage Product Technical Complaints and Suspected Counterfeit Incidents in GBS”
- SSC-PTC-BP-001 “Initial Risk Classification”.
- US03REGS-BP000103. Caplets, Tablets and Effervescents Technical Complaint Guidance Document.
- US03REGS-BP000104. Capsules, Soft Gels and Liquid Gels Technical Complaint Guidance Document.
- REGS-US03-BP-000105. Plasters and Patches Technical Complaint Guidance Document.
- US03REGS-BP000109. Gummies and Dragees Technical Complaint Guidance Document.
- US03REGS-BP000110. TENS Units Technical Complaint Guidance Document.
- US03REGS-BP000111. Solutions, Suspensions and Shampoos Technical Complaint Guidance Document.
- US03REGS-BP000112. Granulars and Powders Technical Complaint Guidance Document.
- US03REGS-BP000113. Ointments, Balms, Cream, Lotions and Gels Technical Complaint Guidance Document.
- US03REGS-BP000114. Aerosols and Pump Sprays (including Nasal Sprays) Technical Complaint Guidance Document.
- US03REGS-BP000117. HydraSense Technical Complaint Guidance Document.
- IQMS-59766. Midol Heat Vibes Best Practice.

6 External References

- N/A

History of changes

Version	Significant changes with respect to previous version	Effective Date *(yyyy-mm-dd)*
1	New document	2020-03-13
2	# Section 3 Minor updates on the responsibilities. # Section 4.1.3 Update on how to send an escalation received through email. # Section 4.1.4 Update on pharmacovigilance process flow. # Section 4.1.6 Update on when to select “yes” in “response required” field in Dev@Com if the case comes from a HA. # Section 4.1.12 Minor updates. 3 Section 4.1.13 Minor updates on this section (misprint, specific vendor requirement on Bion Pharmaceuticals products, Dev@Com case processing and Follow Up cases). Updated Naming files reference document. # Update doc label to include PTC	2021-04-05
3	# SSC or SSCDN references changed to GBS. # Section 3 Minor updates on the responsibilities. # Section 4.1.13 Updated escalation rule “Label misprint errors”. # Section 4.1.4 Minor updates. Added timeframe to report to PV potential AEs. # Section 4.1.5 Minor updates. Added Midol Heat Vibes best practice. # Section 4.1.6 Minor updates. Adder remark. # Section 4.1.7 Change in the tables name. Added SYNAPS tool to verify corresponding manufacturing sites. # Section 4.1.10 Minor Updates. Added remark. # Section 4.1.12 Renamed subtitle “Information not requiring a Dev@Com entry”. Added subtitle “Cases coming from different sources”. Minor Updates. # Section 4.1.13 Minor updated. Removed instructions when using the User Information Letter 48. Updated “Non-processable complaints” instructions. Added subtitle “Child Resistant Cap monthly review”. # Section 5 Added internal reference.	2022-11-23
4	# Section 3.3 Added GBS responsibility for performing KPIs evaluation. # Section 4.2 Added Quality International Global Business Partner contact # Section 4.3 Updated process of escalation rules within the complaint database. # Section 4.5 Added RQU instruction to issue a notification for initiating the sample retrieval process in coordination with GBS. # Section 4.6 Updated the response letter process. # Section 4.9 Updated data privacy requirements by implementing the “User Guide for Redaction of Personal Data.”	See Cover page

	# Section 4.13 Updated follow up case process and added IQMS Amendments process. # Changed word “Dev@com” for “Complaint Database”.	

7 Annex 1

Product Complaint Form

Complaint created (date)……
Complaint received (date) ……

Product information:	
Product name	
Batch / lot number	
Dosage form *(cream, tablet, capsule, etc.)*	
Package type/size	
Number of packages	
Sample available?*	Yes/No
*Sample available = please keep for further potential shipment	

Complaint information:	
Complaint description (defect description, is it suspected counterfeit case, etc.)	
Adverse event reported?	Yes/No
Does the complainant expect a response from Bayer?**	
**By requesting a response, the Complainant agrees to his/hers contact data being processed by Bayer for the purpose of providing the answer to the submitted complaint *(the exact sounding to be aligned with legal)*	

Complainants' contact information attention: in the countries with special Data Privacy regulations to be replaced by the complainant code number (to be given by CQU)	
Name and surname	
E-mail address	
Telephone	
Home address	

Sender (if other than Complainant, e.g. a pharmacy)	
Senders' Name (Legal entity)	
Address	
E-Mail address	
Telephone number	

Any additional information	

Task: Content Approval Verdict: Approve changes & release Approval to be made Effective	Dana O'Donnell (dana.odonnell@bayer.com) Approver - Content 11-Dec-2025 19:26:11 GMT+0000
Task: Final Approval Verdict: Approve changes & release Final Approval to be made Effective	Roberto Chaves (roberto.chaves@bayer.com) Approver 17-Dec-2025 03:13:21 GMT+0000